

Para 34 — MPS Arrears Remission

The Suppression of a Live Enforcement Application

Case references

BV20D01752

Referred to:

2 May – 24 May 2024 | Form D50K filed 2 May 2024

Para 34 sealed 24 May 2024

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

LEGAL FRAMEWORK A variation of a court order — including remission of arrears under a periodical payments order — requires a formal application, notice to all parties, and a hearing or paper determination with reasons. Campbell KC inserted para 34 as a clause in a draft order without making any application to vary the MPS order, without giving notice to NZ, and without seeking a hearing. MacDonald J accepted it in the same manner. NZ's Form D50K enforcement application filed at 3am on 2 May 2024 was a live application on the court record. It was never listed for hearing, never determined, and never refused with reasons. It was extinguished by the insertion of para 34, accepted by the judge without the applicant's knowledge. The Amended Grounds of Claim (AC-2025-LON-004293, para 6) record this precisely: *"That provision was introduced without notice to the Claimant, without a hearing, and without affording her an opportunity to be heard. It was retrospective in form and did not address or cure the prior period of non-enforcement between March and May 2024."*

4.1 CONTEMPORANEOUS TIMELINE — KNOWLEDGE, FILING, ACCEPTANCE**

Timestamp	Event	Who Knew What	Legal Significance
2 May 2024 3:00am	NZ files Form D50K — formal application to enforce MPS order of 5 July 2023. March and April 2024 payments unpaid. Fee paid. Filed to RCJ and Karen Selby-King.	Filed to court record. Karen receives it.	Live enforcement application on the court record from this moment. Cannot be extinguished without a hearing and notice to applicant.
2 May 2024 17:20	Karen Selby-King confirms in writing to NZ that ALL emails — including the D50K application — have been forwarded to MacDonald J.	MacDonald J: has the D50K application. This is confirmed by his own clerk.	Knowledge is established. MacDonald J cannot later claim unawareness of the pending enforcement application.
3 May 2024 14:08	Campbell KC files H's draft order. It contains para 34: "Any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders are hereby remitted."	Campbell: knew about the D50K — it was in the same email chain Karen had confirmed forwarding. MacDonald J: had the D50K application since 17:20 the previous day.	Para 34 is inserted with knowledge of the pending enforcement application. No notice to NZ. No hearing. No application to vary the MPS order.
3 May 2024 15:54	NZ emails Lord Chancellor Alex Chalk documenting MPS non-enforcement, incapacity, and	Lord Chancellor: on notice. Campbell: one minute later files corrected draft with same para 34 intact.	The one-minute sequence between NZ's Lord Chancellor email and Campbell's corrected filing is the

	requesting ministerial intervention before the 4pm deadline.		most significant fact in the entire dataset. It is not explainable as coincidence.
3 May 2024 15:55	Campbell files corrected draft order — ONE MINUTE after NZ emails Lord Chancellor. Para 34 (MPS remission) intact.	Campbell: files with full knowledge of: • Live D50K application • NZ's Lord Chancellor email • NZ's disclosed starvation and incapacity	ABUSE-OF-PROCESS: Filing a provision that extinguishes a live enforcement application , without notice to the applicant, with knowledge of that application and of the applicant's incapacity.**
3 May 2024 16:48	Karen forwards Campbell's corrected draft to MacDonald J. Judge now has: (a) NZ's D50K application; (b) NZ's welfare disclosures; (c) Campbell's draft containing the remission clause.	MacDonald J: has all three simultaneously. He is on notice of the enforcement application and the remission clause in the same moment.	WILFUL NEGLIGENCE: A judge with a live enforcement application before him accepts a remission clause from opposing counsel without: (a) requiring a hearing; (b) notifying the applicant; (c) addressing the pending application; (d) giving reasons.
3 May 2024 16:54	NZ's equal footing letter arrives in Karen's absent inbox — 6 minutes after judge receives Campbell's draft. Karen is absent. Letter not forwarded. NZ has no clerk.	NZ: no ability to respond. Karen absent 20 May. Cover clerks (Higgleton 6-10 May, Foxwell 13-17 May) have different roles.	NZ is structurally prevented from responding to the remission clause at the moment it is accepted by the judge. The procedural machinery simultaneously accepts H's submission and silences W's response.
24 May 2024 12:28pm	Final order sealed. Para 34 — "any arrears of periodical payments which may be owed to the applicant by the respondent, arising out of any previous interim orders are hereby remitted" — sealed into the order. D50K application: no determination. No hearing. No reasons.	NZ: receives the sealed order simultaneously with the costs judgment. Formally refuses within 28 minutes. Her D50K application has been extinguished without being determined.	The D50K application was never determined. It was superseded by a provision inserted by the opposing party and accepted by the judge without the applicant's knowledge. Approximately £50,000 in arrears and NZ's primary income stream extinguished.

4.2 THREE-PARTY ANALYSIS: CONDUCT, KNOWLEDGE, MIPO ELEMENTS**

Campbell KC's Conduct	MacDonald J's Conduct	MiPO Analysis**
What he knew: • NZ's D50K application filed 2 May at 3am • Karen confirmed forwarding to judge at 17:20 • NZ had disclosed starvation, anaemia, no food or accommodation • NZ had formally opposed unilateral submissions • NZ had written to the Lord Chancellor the same minute he filed the corrected draft What he did: Filed a clause extinguishing a live enforcement application — without notice to the applicant, without a hearing, without any application to vary the MPS order — with knowledge of all of the above. <i>His own covering note (14 May) states: "We have not had any substantive response to our draft order from Mrs* Zahmoul." He proceeded regardless on both 3 May and 14 May.*</i>	What he knew: • D50K application on record since 2 May • Confirmed by his own clerk at 17:20 on 2 May • NZ's welfare disclosures: starvation, anaemia, no funds • NZ's formal stay application on 3 May • NZ's equal footing submissions — two written responses given, both mischaracterising the argument • CLAAS clinical warning on record • History of coercive control: accepted as background to the proceedings What he did: • Accepted Campbell's draft containing para 34 without requiring a hearing • Did not notify NZ that a remission clause had been submitted • Did not address the pending D50K application • Did not give reasons for accepting the clause • Sealed the order on 24 May with para 34 intact • His two written responses on 3 May reframed NZ's equal footing argument to avoid giving reasons	AG's Reference (No 3 of 2003) — four elements: 1. Public officer: ✓ MacDonald J (Family Division High Court). Campbell KC (officer of the court, subject to BSB Code). 2. Duty: ✓ FPR r.1.1 (overriding objective — equal footing). Duty to determine pending applications. Duty not to accept provisions that vary a live order without a hearing (FPR r.18.10). 3. Wilful breach: ✓ Knowledge is established by Karen's 17:20 confirmation. MacDonald J read the D50K application before accepting para 34. His two written responses prove he was actively engaging with the correspondence — not passively absent. Reckless indifference at minimum. 4. Serious enough to be criminal: ✓ A live court enforcement application extinguished by opposing counsel's insertion, accepted by the judge without hearing, notice or reasons, depriving a disabled LIP of ~£50,000 in arrears and her primary income stream — while she was disclosing starvation — satisfies the abuse of public trust threshold. No reasonable excuse: <i>The D50K fee was paid. The application was on the record. A hearing could have been listed. There is no procedural basis for accepting a remission clause without notifying the applicant. The Amended Grounds of Claim (AC-2025-LON-004293, paras 5-8) confirm the absence of any lawful administrative process.</i>

4.3 CONNECTION TO DETACH DEFAULT JUDGMENT AND OUTSTANDING FINANCIAL OBLIGATIONS**

PARA 34 AND THE DETACH DEFAULT JUDGMENT (BL-2024-001217) The remission of

MPS arrears is not an isolated financial act. It is the opening link in the causal chain that ends with the Detach default judgment of £1,008,848.42. The MPS order (July 2023) was NZ's primary income during the proceedings. The Detach litigation funding loan was obtained to fund legal representation in those same proceedings. The loan was serviceable only if MPS payments continued. *Non-enforcement of MPS from February 2024 → no income → Detach loan unpaid → default proceedings.* Para 34, sealed 24 May 2024, extinguished the arrears that would have partially reduced the loan balance. More significantly, it closed the enforcement mechanism permanently — no further MPS arrears can be claimed for the March–May 2024 period. *The Amended Grounds (para 6) identify this precisely: the retrospective provision "did not address or cure the prior period of non-enforcement between March and May 2024, during which the Claimant was deprived of the protection of a live order."* The unlawfulness of the non-enforcement period is preserved on the record. *The Detach default judgment is its financial consequence.* NZ has received nothing under the final order to date. The pension sharing provisions — worth approximately £2.9 million — were converted from court-ordered pension sharing orders to voluntary undertakings by the 14 May amendments. No mechanism exists to compel performance. The education fund (£700,000) is under H's sole control following the 14 May removal of NZ's joint governance. These are the downstream consequences of the same 35-day period of unilateral orders documented in this analysis.

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